

ORDER SHEET
IN THE LAHORE HIGH COURT,
MULTAN BENCH MULTAN
JUDICIAL DEPARTMENT

W.P.No.6405 of 2018

Mohammad Nadeem. Vs. Addl. District Judge, etc.

<i>Sr. No. of order/ proceedings</i>	<i>Date of order/ Proceeding</i>	<i>Order with signature of Judge, and that of Parties' counsel, where necessary</i>
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19.06.2018.	Mr. Abdul Rehman Tariq Khan and Malik Nazar Hussain Arain, Advocates for petitioner.
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Through this constitutional petition, the petitioner has called in question the judgment and decree dated 27.01.2017 passed by Judge Family Court, Multan/respondent No.2, whereby the suit for recovery of maintenance allowance and dower was decreed by the learned trial court, and has also called in question the judgment and decree dated 02.12.2017 passed by Addl. District Judge, Multan/respondent No.1, whereby the appeal filed by the petitioner against the afore-said judgment and decree was dismissed.

2. Brief facts of the case are that respondent No.3 was married to the petitioner on 22.06.2014 but no issue was born from the said wedlock. It is claimed by respondent No.3 (*‘respondent’*) that behavior of the petitioner with her was not proper and he used to physically torture her and turned her out of his house,

where after she filed a suit for recovery of maintenance allowance and dower for an amount of Rs. 6000/- per month for past one year and for future and also claimed dower of 2 tola gold ornaments as well as 4 kanals land along with constructed house with four walls as '*Haqqul Mehar*'. The said suit was contested by the present petitioner by filing written statement claiming therein that the entire dower had been paid and also claimed that respondent was not entitled to receive maintenance allowance. The said suit was decreed by the Judge Family Court on 27.01.2017 by declaring respondent No.3 entitled to receive Rs. 3000/- per month as maintenance allowance till her '*Iddat*' period and 4 kanals house as dower. The appeal filed by the petitioner against the said judgment was dismissed on 02.12.2017. Both the afore-referred judgments and decrees are under challenge through this petition.

3. Learned counsel for the petitioners has argued that the petitioner has already paid the entire dower amount to respondent No.3 and she is not entitled to receive anything further as dower, and both the judgments and decrees are liable to be set-aside to that extent.

4. Heard. Record perused.

5. Learned counsel for the petitioner at the very outset has stated that he does not press this petition to the extent of maintenance allowance, however, would contest the decree to the extent of 4 Kanals house as dower. In view of the above, this petition to the extent of maintenance allowance is **dismissed as not pressed.**

6. As far as the claim of the petitioner that respondent is not entitled to receive 4 kanals house as dower is concerned, he places reliance upon Nikahnama Exh.P.4, wherein in column No. 13, it is mentioned that an amount of '*Haqqul Mehar*' is fixed as Rs. 1000/- and 2 tolas gold ornaments, which has been paid to the wife at the time of marriage. Column No. 14 also reiterates the afore-referred statement that dower of Rs. 1000/- and 2 tola gold ornaments has been paid. Column No. 15 of the Nikahnama has been cut out whereas in column No. 16, it is mentioned that the petitioner is entitled to receive one Bhigga land with constructed house and boundary wall. Learned counsel for the petitioner states that as column No. 13 and 14 of the Nikahnama mention that '*Haqqul Mehar*' has been paid, therefore, the petitioner is not entitled to receive anything else as dower. Further he relies upon statement of respondent No.3 while she

appeared as his own witness as PW-1 and during her cross-examination admitted that she had been provided 4 Kanals house for residence. I have gone through the statement of the PW-1/respondent No.3, who while appearing in cross-examination has stated that it is incorrect that her parents had raised demand against the petitioner to provide to the respondent an independent house. The petitioner had not actually paid her *Haqqul Mehar* rather only payment relating to *Haqqul Mehar*/dower has been mentioned in the papers only and she lived in a place measuring 4 kanals. It has not been specifically stated by respondent No.3 that any property had been transferred by the petitioner to her as *Haqqul Mehar* which measured 4 Kanals. Besides in his written statement the petitioner states that *Haqqul Mehar* has been paid and while appearing as his own witness as DW-1 he had produced his affidavit as Ex.D1 wherein it is mentioned that he had paid *Haqqul Mehar*. He has not denied in the said statement or his written statement that 4 kanals land with constructed house was mentioned as *Haqqul Mehar* in the *Nikahnama*, therefore, the claim of the petitioner that he had paid all the *Haqqul Mehar* to respondent No.3 should have been substantiated by leading some evidence on the

record. He has failed to place anything on the record to show that 4 Kanals land had been transferred to respondent No.3. Besides he has not denied that such land was fixed as *Haqqul Mehar* rather in his cross-examination while appearing as DW-1 he admits that in Column No. 16 of the *Nikahnama*, the land measuring 1 *Bhigga* with constructed house and boundary wall was mentioned in the *Nikahnama*, therefore, the petitioner has, on one hand, admitted the said property had to be given as *Haqqul Mehar* as per Column No. 16 of the *Nikahnama* and, on the other hand, failed to establish that *Haqqul Mehar* has been paid. The entries in Column No. 13 and 14 of the *Nikahnama* only show regarding payment of *Haqqul Mehar* @ Rs. 1000/- as well as 2 tola gold ornaments, which cannot be extended beyond its context to mean that entire *Haqqul Mehar* had been paid, therefore, the courts below rightly decreed the suit of the respondent No.3 against the petitioner to the extent of 4 kanals land with constructed house and boundary wall as dower or its alternate price. No illegality, jurisdictional defect or misreading or non-reading has been pointed out in the judgments passed by the courts below, whereby it could be observed that the said judgments are without lawful authority and of no

legal effect, therefore, no exception can be taken to the same.

7. For what has been discussed above, this petition being devoid of any merit stands **dismissed**.

(Muzamil Akhtar Shabir)
Judge

Zeeshan Khan